

Jamuna Prasad v. State of U.P.

Allahabad High Court · Division Bench · 25 September 2014 · Writ-C No. 52104 of 2014 · **Writ disposed; relegated to clause 6.5; recovery stayed pending decision.**

HEADNOTE

A purely factual challenge to an electricity recovery certificate is not decided in writ. The consumer must apply under clause 6.5 of the U.P. Electricity Supply Code, 2005; the competent authority is to decide by a speaking order as per clause 6.5(b). Recovery remains in abeyance until that decision and thereafter follows it.

FACTUAL SUMMARY

Jamuna Prasad, describing himself as a poor agriculturist, held an unmetered 1 KW domestic connection used for light and fan and billed at a flat Rs. 190 per month. A recovery certificate issued for outstanding electricity arrears of Rs. 17,262; an RTI query had quantified the liability at Rs. 26,654. He asserted that he paid bills regularly and that the amount was neither due nor payable, the certificate being illegal or the result of some mistake.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-accuracy-dispute

HOLDING

Where a consumer disputes the accuracy of an electricity bill and the controversy is purely factual, the writ court will not adjudicate the demand. The consumer is to apply under clause 6.5 of the U.P. Electricity Supply Code, 2005; the competent authority must decide the complaint by a speaking and reasoned order in accordance with the procedure in clause 6.5(b). Recovery proceedings remain in abeyance until that application is decided and thereafter follow the authority's order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A purely factual challenge to an electricity recovery certificate is not decided in writ. The consumer must apply under clause 6.5 of the U.P. Electricity Supply Code, 2005; the competent authority is to decide by a speaking order as per clause 6.5(b).. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS. 17,262, OR THE RTI-QUANTIFIED LIABILITY OF RS. 26,654, WAS ACTUALLY DUE OR THE RESULT OF A BILLING MISTAKE

Treated as a purely factual dispute for the clause 6.5 authority ¶ 1